

23CV02702 Nicole Emily Jordan vs Rogers Sheffield & Campbell LLP et al

County: santa-barbara

Division: Civil Law & Motion

Department: 5 SB-Anacapa

Hearing date: 2026-08-24

Motion: Motion: Discovery re MOTION TO CROSS-USE DISCOVERY OBTAINED IN PROBATE PROCEEDING

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Hearing Date / Time

Mon, 08/24/2026 - 10:00

Nature of Proceedings

Motion: Discovery re MOTION TO CROSS-USE DISCOVERY OBTAINED IN PROBATE PROCEEDING

Tentative Ruling

Nicole Emily Jordan, et al., v. Rogers, Sheffield & Campbell, LLP, et al. (Judge Sterne)

Case No. 23CV02702

Hearing Date: August 24, 2026

HEARING: Motion of Plaintiff Nicole Emily Jordan for Order Permitting Use of Identified Discovery in Related Civil Action

ATTORNEYS: For Plaintiff Nicole Emily Jordan: Tamineh Roshanian, Roshanian Payman, PC

For Defendants Rogers Sheffield & Campbell, LLP, Sheila Price, and Karin Stein: Kenny C. Brooks

TENTATIVE RULING:

Plaintiff Nicole Emily Jordan's motion for order permitting use of identified discovery in related civil action is denied.

Background:

(1) Plaintiff's Second Amended Complaint (SAC):

Borimir Jordan (Borimir) and Virginia Jordan (Virginia), who were husband and wife (collectively, the Jordans), had three daughters, defendants Angela Jordan (Angela) and Jennifer Jordan (Jennifer), and plaintiff Nicole Jordan (Nicole). (SAC, ¶¶ 1, 21.) (Note: To avoid confusion and for ease of writing, parties with the same surname will be referred to by their first names. No disrespect is intended.)

Homer G. Sheffield, Jr. (Sheffield), now deceased and represented in this action through defendant Sheila T. Price (Price) as personal representative of his estate, was an estate planning attorney. (SAC, ¶¶ 5, 22.) Sheffield represented Borimir and Virginia in trust and estate matters from at least 1998 until October 2018. (SAC, ¶ 24.) Sheffield drafted the Borimir and Virginia Jordan Family Trust (Trust) and the first through fifth Trust amendments. (SAC, ¶ 26.)

On September 17, 1998, Borimir and Virginia established the Trust, reserving to themselves the power to amend the Trust. (SAC, ¶ 27.)

Nicole was the youngest child of the Jordans and suffered from limited mental disability, including depression from the age of minority. (SAC, ¶ 28.) Nicole applied for social security disability in 2003 when she found it difficult to work and concentrate on tasks, which prompted the Jordans to amend the Trust a third time to secure Nicole (Third Trust Amendment). (SAC, ¶¶ 29-31.) The Third Trust Amendment is a restated Trust amendment which contains a "no contest" clause. (SAC, ¶ 31.)

On August 16, 2010, the Jordans executed a Fourth Trust Amendment, appointing Sheffield and Justin M. Pearlman as successor co-trustees. (SAC, ¶ 32 & Ex. 4.) Each was given the power to name their own successor co-trustee upon notice, and if either was unable or unwilling to serve, the other would serve as sole successor trustee, but there was no provision for a sole successor trustee to name a successor trustee if either was unable or unwilling to serve as sole successor trustee. (SAC, ¶ 32.)

On May 11, 2012, the Jordans executed a Fifth Amendment to the Trust. (SAC, ¶ 33.)

Sheffield drafted three versions of a sixth trust amendment. (SAC, ¶ 34.) Plaintiff alleges that Sheffield and defendant Karin C. Stein, a paralegal employed by Sheffield's law firm, defendant Rogers, Sheffield & Campbell, LLP (RSC), drafted the third version of the sixth trust amendment (3d Draft Sixth Amendment) to appoint Jacqueline Quinn as the successor trustee, but the Jordans were not given a copy of this third version for their approval and execution. (SAC, ¶ 3, 6, 9, 35.)

Under the 1998 version of the Trust, the trust property was to be distributed in equal shares to the Jordan's three daughters after Borimir and Virginia's death. (SAC, ¶ 37.) The first and second trust amendments did not change the beneficial interests of the Trust. (SAC, ¶¶ 39-40.) The Third Trust Amendment named Nicole as the sole beneficiary of residential real properties located at 1738 North Lynne, No. 38, Santa Maria, California (North Lynne Property) and 639 Lyndon Street, Monterey, California (Lyndon Street Property), and of \$350,000 of Morgan Stanley securities. (SAC, ¶ 42.) When the Jordans decided to restate and amend the Trust in March 2007, they named Nicole as the main beneficiary to secure Nicole's financial future after having already given substantial sums to Angela and Jennifer. (SAC, ¶ 43.)

Beginning in 2005 and until their final returns prior to their death in 2020, the Jordans claimed Nicole as a dependent adult with disability on their tax returns. (SAC, ¶ 46.)

After Nicole moved into her parents' home, the Jordans promised Nicole to leave her the main residence located at 5513 Camino Cerralvo, Santa Barbara (the Residence). (SAC, ¶ 55.) On July 30, 2010, the Jordans instructed Sheffield to amend the Trust to leave Nicole the Residence, income-producing commercial real property located at 87 Santa Felicia, Goleta, California, and \$100,000 in cash. (SAC, ¶ 56.) The Fourth Amendment includes these changes except the cash bequest was unchanged from \$50,000. (Ibid.) The Fourth Amendment and updated other documents were executed on August 16, 2010. (SAC, ¶ 57.)

In Spring 2011, Nicole was violently raped while out at night. (SAC, ¶ 62.) She called Angela right after calling 911 and made a police report. (Ibid.) However, Angela told the police that Nicole was lying and made up the story to attract attention to herself. (Ibid.) The police refused to investigate, and Nicole was devastated. (Ibid.) Subsequently, Nicole suffered a mental breakdown and Angela used that to get their parents to amend the Trust a fifth time. (SAC, ¶ 64.)

Under duress from Angela and Jennifer, the Jordans instructed Sheffield to amend the Trust. (SAC, ¶ 67.) The Fifth Amendment, dated May 11, 2012, distributed the Trust assets between the three daughters in equal shares following the death of the surviving spouse. (Ibid.) Shortly thereafter, the Jordans changed their mind, and on July 10 and 12, 2012, Virginia instructed Sheffield to delete the entire Fifth Amendment, restoring the Fourth Amendment. (SAC, ¶ 68.)

On July 19, 2012, Sheffield prepared a draft sixth amendment (1st Draft Sixth Amendment) and sent it to the Jordans for signature. (SAC, ¶ 69.) Virginia cancelled the signing of the 1st Draft Sixth Amendment because Sheffield assured her that he had destroyed the Fifth Amendment in 2012 leaving the Fourth Amendment. (SAC, ¶ 73.)

In 2014, Adult Protective Services assigned defendant Jamie Cathleen Green to investigate claims made by Angela and Jennifer of financial elder abuse of the Jordans by Nicole. (SAC, ¶ 172.) Green was employed as a Social Services Worker for the Santa Barbara County, Department of Social Services Adult Protective Services (APS) program. (SAC, ¶ 4.) No charges were ever brought against Nicole. (SAC, ¶ 173.)

In August or early September 2018, Virginia tried to get Sheffield to prepare a new sixth amendment to leave the Residence, the Santa Felicia Property, and \$350,000 to Nicole, after she learned from him that his duplicate original copy of the Fifth Amendment had not been destroyed or revoked. (SAC, ¶¶ 76, 77.) This new draft sixth amendment (2d Draft Sixth Amendment) was given to Virginia at an office visit in September 2018 and was later attached to a letter sent to Virginia on October 30, 2018. (SAC, ¶ 78.) Virginia was not happy with this draft and directed Sheffield to make additional changes to leave the income-producing properties together with the Residence and Morgan Stanley account balance to Nicole. (SAC, ¶ 79.) Sheffield did not act on Virginia's instructions. (Ibid.)

Based on numerous events extracted from APS's document disclosure, Nicole alleges that from September 2018 to 2020, Green started a personal witch hunt against Nicole having Sheffield and Stein as her allies in a scheme to frustrate Virginia and Borimir from signing the intended Sixth Amendment to favor Nicole by aiding Angela to obtain conservatorship of her parents. (SAC, ¶ 177.)

From September 2018 until sometime in 2020, Sheffield and Stein engaged in extensive correspondence with Angela, Jennifer, attorney Mark Wiestock, Green, and Morgan Stanley, ostensibly to assist Angela to obtain a conservatorship of Virginia and Borimir, all without the knowledge or consent of the Jordans. (SAC, ¶ 81.) In 2018, Sheffield and Stein used Wiestock as a conduit to pass on attorney-client privileged documents and information about the financial and legal affairs of the Jordans to Angela and Jennifer. (SAC, ¶ 105.)

On September 14, 2018, Virginia received at the Residence a letter from Sheffield attaching the first Quinn Fiduciary Agreement signed by Quinn. (SAC, ¶ 91.) On September 28, Virginia countersigned this agreement and delivered it to RSC's

office with a check for \$1,000. (SAC, ¶ 92.)

Quinn prepared an “assessment report,” dated October 12, 2018, which makes untrue allegations about Nicole, including elder financial abuse, neglect, and drug use. (SAC, ¶ 100.)

Virginia signed a second Quinn Fiduciary Agreement on October 18, 2018, but Quinn never returned to the Residence to pick up the signed letter or provide any service to the Jordans. (SAC, ¶ 101.)

Virginia and Borimir did not agree to appoint Quinn as their power of attorney or trustee. (SAC, ¶ 109.)

In December 2018, Sheffield, Stein, and RSC stopped communicating with the Jordans because the Jordans refused to abandon their plan to amend the Trust for a sixth time to leave the Residence, the income-producing properties, and the Morgan Stanley securities to Nicole. (SAC, ¶ 115.)

Around October or December 2018, Sheffield informed Virginia that he was resigning as the Jordans’ estate planning attorney. (SAC, ¶ 142.)

The Jordans signed a letter, dated April 21, 2019, with a handwritten note to fax to Sheffield, asking, among things, for Sheffield to make the changes to the estate documents. (SAC, ¶ 117.) A different version of this letter was produced by RSC in the subsequent probate action, that was altered by RSC staff members. (SAC, ¶¶ 118-119.)

Borimir died on March 26, 2020. (SAC, ¶ 148.)

On April 16, 2020, Angela filed a petition for conservatorship of Virginia, attaching Quinn’s assessment report in support. (SAC, ¶ 149.) The court issued an order of temporary conservatorship on October 15, 2020, appointing Mark Watson, a professional fiduciary, as conservator. (Ibid.)

Virginia died on November 1, 2020. (SAC, ¶ 150.)

On November 11, 2020, Sheffield sent a resignation letter to Watson in which he stated that he was resigning as co-trustee of the Trust, also sending the Third, Fourth, and Fifth Amendments to the Trust with other estate documents. (SAC, ¶¶ 151, 152.)

On November 16, 2020, Pearlman, the other co-trustee appointed in the Fourth Amendment, resigned without naming a successor trustee. (SAC, ¶ 154.)

On December 11, 2020, Sheffield nominated Watson as successor trustee. (SAC, ¶ 156.)

Watson began administration of the Trust, sending notice to all beneficiaries in January 2021. (SAC, ¶ 159.)

Sheffield died in August 2021. (SAC, ¶ 157.)

On March 15, 2022, Nicole filed her probate petition to validate the sixth amendment, among other prayers for relief. (SAC, ¶ 188.) Angela and Jennifer demurred to the probate petition on the grounds of the statute of limitations. (SAC, ¶ 188.) The Probate court sustained the demurrer without leave to amend. (SAC, ¶ 189.) The Court of Appeal subsequently affirmed.

(SAC, ¶ 191.)

On September 11, 2024, Angela filed a petition to determine that Nicole violated the no-contest clause of the Trust. (SAC, ¶ 192.) The parties settled whereby Nicole accepted \$400,000 in final settlement from her parents' Trust and Nicole dismissed her complaint against Angela and Jennifer. (SAC, ¶ 195.) The net value of the Trust was \$3.7 million. (SAC, ¶ 197.)

(2) Procedural History

On June 22, 2023, Nicole filed the original complaint in this action, asserting 17 causes of action.

On September 5, 2023, RSC filed its demurrer and motion to strike to the original complaint, set for hearing on October 16.

On September 7, 2023, Price, as representative of the estate of Sheffield, filed her demurrer and motion to strike to the original complaint, set for hearing on October 23.

On September 14, 2023, Green filed her demurrer and motion to strike to the original complaint, set for hearing on October 16.

All demurrers and motions to strike were opposed by Nicole. The matters set for hearing on October 16, 2023, were then continued to October 23.

On October 23, 2023, the matters were continued to December 11, 2023.

On December 11, 2023, the court heard and ruled on these pending matters. The court sustained the demurrer of RSC on the grounds of the statute of limitations, with leave to amend, but did not rule on the other grounds asserted. The court sustained the demurrer of Price on the grounds of the statute of limitations, with leave to amend, as to all causes of action except the first cause of action for breach of fiduciary duty, which the court overruled; the court did not rule on the other grounds of the demurrer. The court granted the motions to strike by RSC and Price with leave to amend. The court sustained the demurrer of Green, with leave to amend based upon the failure to allege compliance with the claims presentation requirement, and did not otherwise rule on the other grounds of the demurrer or the motion to strike.

On January 8, 2024, Nicole filed her first amended complaint (FAC), asserting 13 causes of action.

On March 15, 2024, RSC and Price filed their demurrer and motion to strike to the FAC, set for hearing on May 20. Also on March 15, Green filed her demurrer and motion to strike to the FAC, set for hearing on May 20. All demurrers and motions to strike were opposed by Nicole.

On May 20, 2024, the demurrers and motions to strike were continued to July 1.

On July 1, 2024, the court ruled on the demurrers of RSC and Price. The court sustained the demurrers, with leave to amend, (a) as to all causes of action to the extent they purport to assert representative claims, (b) to all causes of action made on the ground that the allegations are insufficient to support the conclusion that the attorney defendants breached any duty of care owed to Nicole as an intended beneficiary of her parents' trust, (c) to the cause of action for breach of fiduciary duty (to the extent it is based upon the provision of attorney services), the cause of action for breach of the duty of confidentiality, and the cause of action for constructive trust, on the basis that the facts alleged in the FAC are insufficient to support the conclusion that any fiduciary duty was owed by the attorney defendants to Nicole; and (d) to the fraud-based causes of action, made on the ground that the allegations of the FAC are insufficient to support the conclusion that Nicole could have justifiably relied on

any misrepresentations or non-disclosures by the attorneys, or suffered damages from any such justifiable reliance. The court sustained the demurrer, with leave to amend, to the cause of action against Price/ Sheffield against him in his capacity as trustee of the trust, based upon the fiduciary duty owed by a trustee to beneficiaries of a trust. The court overruled the demurrer (a) made to the claims based upon the provision of legal services on statute of limitations grounds, (b) based upon the mitigation of damages argument, and (c) the miscellaneous additional claims of defects which were only summarily presented by defendants' demurrer. The motion to strike was ordered off calendar as moot.

On July 29, 2024, the court sustained the demurrer of Green, with leave to amend, on the ground of failure to allege compliance with the claim presentation requirements. The motion to strike was ordered off calendar as moot.

On March 17, 2025, Nicole filed the SAC. The SAC asserts eleven causes of action. Four causes of action are asserted against RSC and Price as the personal representative of Sheffield (collectively, Attorney Defendants): (1) breach of fiduciary duty (SAC, ¶¶ 230-242); (2) intentional misrepresentation of facts (SAC, ¶¶ 243-250); (3) fraud and deceit by concealment (SAC, ¶¶ 251-265); (4)(2d) constructive fraud (SAC, ¶¶ 244(2d)-267(2d)). Two causes of action are asserted against Green: (4) fraud and deceit (SAC, ¶¶ 266-282, 243(2d)), (5) slander (SAC, ¶¶ 268(2d)-278(2d)). Four causes of action are asserted against all defendants: (7) conspiracy to defraud (SAC, ¶¶ 279(2d)-296); (8) tortious interference with expected inheritance (SAC, ¶¶ 297-314); (9) intentional infliction of emotional distress (SAC, ¶¶ 315-324); and (10) declaratory relief (SAC, ¶¶ 325-333.)

On May 13, 2025, the Attorney Defendants filed their demurrer and motion to strike to the SAC.

On May 19, 2025, Green filed her demurrer and motion to strike the SAC. Both demurrers and motions to strike were set for hearing on August 18.

On August 18, 2025, the court sustained defendant Green's demurrer to the SAC without leave to amend on the grounds that the SAC failed to allege compliance with the Government Claims Act presentation requirements. The court continued the demurrer and motion to strike by the Attorney Defendants.

On November 3, 2025, the court again continued the demurrer and motion to strike of the Attorney Defendants to this hearing.

On February 2, 2026, the court sustained the demurrer of Price and RSC, without leave to amend, as to the second cause of action for intentional misrepresentation for facts, fourth cause of action for constructive fraud, seventh cause of action for conspiracy to defraud, and tenth cause of action for declaratory relief. The demurrer was overruled as to the first cause of action for breach of fiduciary duty, third cause of action for concealment, eighth cause of action for intentional interference with expected inheritance, and ninth cause of action for intentional infliction of emotional distress. The motion to strike was denied.

On March 17, 2026, RSC and Price answered the SAC with a general denial and 19 affirmative defenses.

On April 30, 2026, Nicole filed a notice of related case identifying Matter of Borimir and Virginia Jordan Family Trust, Case No. 21PR00040, as related to this action.

On May 22, 2026, Nicole filed the present motion for order permitting the use of discovery from Case No. 2100040 in the present action.

On June 1, 2026, Nicole and defendants filed a stipulation and order that the court's February 2, 2026, ruling on the demurrer would apply to the causes of action alleged against Stein in the SAC.

On June 8, 2026, Stein answered the SAC with a general denial and 19 affirmative defenses.

On June 22, 2026, the court in Case No. 21PR00040 ordered it not related to the current action.

On August 10, 2026, RSC, Price, and Stein filed opposition to the present motion for order permitting the use of discovery from Case No. 2100040 in the present case.

Analysis:

By way of the motion, Nicole seeks an order allowing broad categories of discovery responses, from Case No. 21PR00040, to be used in the current action:

Documents produced through in camera review and governed by a December 12, 2022 discovery order;

Documents produced in response to subpoenas or requests that are not covered by the December 12, 2022 discovery order; and

Documents obtained from independent or previously available sources.

By way of her proposed order, Nicole seeks permission to use essentially every discovery response and every document obtained in Case No. 21PR00040. Her argued reasons are that this action and Case No. 21PR00040 involve the same Trust instrument and overlapping parties and that justice, judicial economy, and cost savings would be served by allowing the discovery to be used in the current action.

Nicole provides no legal authority to support her request, no specific documents or portions of documents are sufficiently identified, and no reasoned explanation is provided as to exactly why the discovery responses would be relevant in the present action. The most that can be said about Nicole's argument is that she claims that the discovery obtained in the Probate case is relevant to claims and defenses in this case and that re-obtaining the discovery responses in this case would be inconvenient and expensive. (Roshanian decl., ¶¶ 18-19.)

In opposition, defendants argue that it is not clear what Nicole is asking for in the motion, Nicole cites no specific authority for the requested order, and that the motion is unnecessary because Nicole is not precluded from generally using any documents or other evidence in this case even if the documents or evidence were obtained via discovery in another matter. (Opp., p. 2, ll. 15-20.)

The court agrees with defendants' first two points but believes that the third point is an oversimplification, with different types of discovery responses treated differently. For example, there is a general rule, but not a categorical bar, to admission at trial of prior testimony from a discovery deposition in a prior action. (see *Berroteran v. Superior Court* (2022) 12 Cal.5th 867, 890.) On the other hand, there is a statutory prohibition of using responses to requests for admission in any manner against the responding party in any other proceeding other than in the case that the response was given. (Code Civ. Proc., § 2033.410,)

Having observed the oversimplification of the third point raised by defendants, Nicole has failed to meet her burden of showing why she is entitled to the order requested. The motion will be denied.

To the extent that Nicole is seeking to modify the December 12, 2022 discovery order, in the Probate case, she may not do so by way of a motion in the present case. She must move for modification of that order in the case in which it is filed.

Judges

Judge Colleen Sterne

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